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*Army Regulation 1–100

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Administration

The Army Gift Program

By Order of the Secretary of the Army:

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General, United States Army
Chief of Staff

Official:

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History. This publication is an administrative revision. The portions affected by this administrative revision are listed in the summary of change.

Authorities. This regulation implements 5 USC; 10 USC 2601, 10 USC 2608, 10 USC 2493, 10 USC 7456, 10 USC 974, 10 USC 7772, PL 107–107, Section 2866(d); 5 CFR 2635; and DoD 5500.07.

Applicability. This regulation applies to the Regular Army, the Army National Guard/Army National Guard of the United States, and the U.S. Army Reserve, unless otherwise stated.

Proponent and exception authority. The proponent of this regulation is the Administrative Assistant to the Secretary of the Army. The proponent has the authority to approve exceptions or waivers to this regulation that are consistent with controlling law and regulations. The proponent may delegate this approval authority, in writing, to a division chief within the proponent agency or its direct reporting unit or field operating agency, in the grade of colonel or the civilian equivalent. Activities may request a waiver to this regulation by providing justification that includes a full analysis of the expected benefits and must include formal review by the activity's senior legal officer. All waiver requests will be endorsed by the commander or senior leader of the requesting activity and forwarded through their higher headquarters to the policy proponent. Refer to AR 25–30 for specific requirements.

Army internal control process. This regulation contains internal control provisions in accordance with AR 11–2 and identifies key internal controls that must be evaluated (see appendix B).

Suggested improvements. Users are invited to send comments and suggested improvements on DA Form 2028 (Recommended Changes to Publications and Blank Forms) directly to usarmy.pentagon.hqda-oaa.mbx.army-gift-program@army.mil.

Distribution. This regulation is available in electronic media only and is intended for the Regular Army, the Army National Guard/Army National Guard of the United States, and the U.S. Army Reserve.

*This regulation supersedes AR 1-100, dated 12 May 2023.

Summary of Change

AR 1–100
The Army Gift Program

This administrative revision, dated 8 December 2025—

- Removes references to the U.S. Army Futures Command (table 1–1).
- Replaces U.S. Army Training and Doctrine Command with U.S. Army Transformation and Training Command (para 3–8*c* and table 1–1).
- Replaces all references to separate commands that are now part of the U.S. Army Western Hemisphere Command (table 1–1).

This major revision, dated 21 May 2025—

- Updates authorities (title page).
- Updates the purpose to elaborate on the scope of the policy (para 1–1).
- Updates the Army Gift Program website address (para 1–4*b*(2)(*e*)).
- Adds language to ensure that gifted funds are expended for the benefit of the intended beneficiary (para 1–4*d*(5)).
- Updates responsibilities by adding a gift acceptance table codifying Army gift authority thresholds (table 1–1).
- Adds language for solicitation authorities for U.S. Military Academy (para 1–6*c*).
- Clarifies language regarding gifts being proffered close in time (para 2–1*d*).
- Updates language to allow Army museums to temporarily take custody of materials and artifacts (para 2–1*f*(2)).
- Clarifies language regarding acknowledgement of future gifts and stipulates that donors must be able to financially execute the proffer (para 2–3).
- Updates language to clarify recognition of donors and official endorsements (para 2–5*b*).
- Adds language regarding utility infrastructure gifts from privatized housing partners to emphasize the importance of establishing clear financial responsibilities (para 2–8*a*).
- Updates verbiage to state that records for monetary and nonmonetary gifts should be retained permanently (para 2–10*b*(2)).
- Adds AR 710–4 for reference on property gifts (paras 2–11*b*, 3–12*g*, and 3–14*b*(2)(*d*)).
- Adds utility infrastructure gifts as a gift of construction type (para 3–7*a*).

- Adds additional documentation for gifts of construction (para 3–7*b*).
- Updates references (app A).
- Updates internal control evaluation (app B).
- Defines international organization (glossary).

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Glossary of Terms

Chapter 1
General

1–1. Purpose
This regulation establishes policy to execute the Army Gift Program for the acceptance, recording, reporting, and accountability of gifts such as money, personal property, real property, service, foreign gifts to individuals, and non-appropriated fund instrumentalities offered to the Department of the Army (DA) by a person, domestic organization, foreign government, or international organization for the benefit of DA organizations and personnel pursuant to statutes and laws listed in the authorities section.

1–2. References, forms, and explanation of abbreviations
See appendix A. The abbreviations, brevity codes, and acronyms (ABCAs) used in this electronic publication are defined when you hover over them. All ABCAs are listed in the ABCA directory located at https://armypubs.army.mil/.

1–3. Associated publications
This section contains no entries.

1–4. Responsibilities
a. Secretary of the Army. The SECARMY will—

(1) Execute gift acceptance authority specified in Titles 5 and 10, United States Code (5 USC and 10 USC) and Public Law 107–107 and delegate gift acceptance authorities to Army officials as annotated in table 1–1.

(2) Ensure compliance with policy in the DoD FMR 7000.14–R and establish procedures to ensure personnel are familiar with the restrictions on accepting gifts and requirements for receiving, recording, reporting, and accounting for gifts.

b. Administrative Assistant to the Secretary of the Army. The AASA will—

(1) Prescribe policy and procedures administering the Gift Program on behalf of the SECARMY.

(2) Appoint the Army Gift Program Coordinator (AGPC). The AGPC will—

(a) Serve as the point of contact to process and maintain records of all gift actions for the SECARMY and AASA; compile, review, and submit an Army quarterly report to the Defense Finance and Accounting Service (DFAS); and provide guidance and oversight to gift acceptance authorities' field gift program offices.

(b) Coordinate with the Office of the General Counsel, and other DA or DoD stakeholders to ensure that policies, procedures, and guidance comply with all applicable laws, regulations, and approved business practices.

(c) Assist, in coordination with the DFAS, benefiting Army organizations with establishing new limits, or subaccounts, in the DA General Gift Fund and the Defense Cooperation Account.

(d) Serve as approving official for requests from DA personnel to dispose of foreign gifts that exceed the minimal value set by the U.S. General Services Administration (GSA), facilitate turn in of certain foreign gifts to GSA, and provide an annual report of all foreign gifts above minimal value reported by DA personnel to the U.S. Department of State (DoS) in accordance with 5 USC 7342 and DoDI 1005.13.

(e) Manage the Army Gift Program website at https://www.army.mil/armygifts and the group mailbox at usarmy.pentagon.hqda-oaa.mbx.army-gift-program@army.mil.

c. The General Counsel. The GC will—

(1) Review gift offers requiring the SECARMY's acceptance for legal sufficiency.

(2) Provide the AGPC legal review for program policy, procedures, and guidance on the acceptance, accountability, and use of gifts for the benefit of Army organizations and personnel.

d. Acceptance authorities. As recorded in table 1–1, the SECARMY has delegated gift acceptance authorities to specified officials. Acceptance authorities will—

(1) Understand the gift offer review process, staffing, reporting, and execute their authorities when recommending acceptance or accepting or declining gifts to the Army as specified in chapters 2 and 3.

(2) Establish a field gift program office within their headquarters and designate in writing a field gift program manager, who will receive program related training from the AGPC; process all gift actions; maintain

records of all gift actions; compile, review, and submit a quarterly report to the AGPC; and ensure the declination or acceptance, operation, and use of gifts are in accordance with all applicable laws, regulations, and approved business practices.

(3) Obtain a written legal review before forwarding any actions to the appropriate gift acceptance authority or accepting any testamentary gift, regardless of value, and before accepting any other kind of gift valued at more than $250 (see para 2–1).

(4) Provide, if applicable, the AGPC a copy of the signed memorandum annotating any further delegations of authority and maintain a copy of the delegation in the office where the authority is held.

(5) Expend gifted funds for the benefit of the intended beneficiary, subject to the terms of the gift, devise, or bequest, as authorized by the authorities listed in table 1–1 and 5 USC 1501. Ensure that gifts are expended in accordance with the terms of the gift, devise, or bequest, which is the responsibility of gift acceptance authorities and field program managers.

Table 1–1
Secretary of the Army gift acceptance delegation of authorities

Officials delegated gift acceptance authority	Further delegable
Accept gifts to the Army up to $5,000,000; to include gifts of construction to the Army valued at up to $750.000.	
Administrative Assistant to the Secretary of the Army: 10 USC 2601(a), 10 USC 2601(b), 10 USC 974, 10 USC 2493, 10 USC 7456, 10 USC 7772(d), 10 USC 7772(e)(1), and PL 107–107, Section 2866(d)(1)	**Yes:** GO/SES GS–15/COL[1] GS–14/LTC[1]
Accept gifts to the Army at an unlimited amount of utility infrastructure made by privative housing and lodging project companies	
Assistant Secretary of the Army (Installation, Energy, and Environment): 10 USC 2601(a) and 10 USC 2601(b)	**Not applicable**
Accept gifts to the Army up to $500,000[4] and up to $20,000 for gifts under 10 USC 7456	
Superintendent, United States Military Academy: 10 USC 2601(a), 10 USC 2601(b)	**Yes:** GO/SES GS–15/COL[1] Director[3]
Accept gifts to the Army up to $500,000[4]	
Commander, U.S. Army Materiel Command: 10 USC 2601(a) and 10 USC 2601(b)	**Yes:** GO/SES
Accept gifts to the Army up to $500,000[4] including for a museum or a museum program and for the benefit of Warrior Games/Invictus Games	
Commander, U.S. Army Transformation and Training Command: 10 USC 2601(a), 10 USC 2601(b), 10 USC 7772(d), and 10 USC 7772(e)(1)	**Yes:** GO/SES GS–15/COL GS–14/LTC
Accept gifts to the Army up to $350,000[4] including for the benefit of nonappropriated fund instrumentalities (NAFI)	
The Surgeon General and Commander, U.S. Army Medical Command: 10 USC 2601(a), 10 USC 2601(b), and 10 USC 2493	**Yes:** GO/SES GS–15/COL[1] GS–14/LTC[2]
Commander, U.S. Army Installation and Management Command: 10 USC 2601(a) and 2601(b) includes gifts for family and morale, welfare, and recreation through the command's online system.	**Yes:** GO/SES GS–15/COL[1] GS–14/LTC[2]
Accept gifts to the Army at up to $350,000[4] and up to $250,000 for gifts under PL 107–107, Section 2866(d)(1)	
Commandant, U.S. Army War College: 10 USC 2601(a) and 10 USC 2601(b)	**Yes:** GO/SES
Accept gifts to the Army up to $100,000[4]	
Executive Director, Office of Army Cemeteries: 10 USC 2601(a) and 10 USC 2601(b)	**Yes:** GO/SES

Table 1–1
Secretary of the Army gift acceptance delegation of authorities—Continued

Director, Army National Guard: 10 USC 2601(a) and 10 USC 2601(b)	**Yes:** GO/SES
The Judge Advocate General: 10 USC 2601(a) and 10 USC 2601(b)	**Yes:** GO/SES
Commander, U.S. Army Pacific: 10 USC 2601(a) and 10 USC 2601(b)	**Yes:** GO/SES
Commander, U.S. Army Europe and Africa: 10 USC 2601(a) and 10 USC 2601(b)	**Yes:** GO/SES
Commander, U.S. Army Central Command: 10 USC 2601(a) and 10 USC 2601(b)	**Yes:** GO/SES
Commander, U.S. Army Western Hemisphere Command: 10 USC 2601(a) and 10 USC 2601(b)	**Yes:** GO/SES
Commander, U.S. Army Special Operations Command: 10 USC 2601(a) and 10 USC 2601(b)	**Yes:** GO/SES GS–15/COL[1]
Commander, U.S. Army Intelligence and Security Command: 10 USC 2601(a) and 10 USC 2601(b)	**Yes:** GO/SES
Commander, U.S. Army Military District of Washington: 10 USC 2601(a), 2601(b), and 10 USC 974	**Yes:** GO/SES

Notes:
[1] If in a deputy or director position—not further delegable.
[2] If in a command or manager position—not further delegable.
[3] To position- Director, Directorate of Academy Advancement (If a GS–13 or above).
[4]For the benefit of the organization and activities under the command jurisdiction.

1–5. Records management (recordkeeping) requirements

The records management requirement for all record numbers, associated forms, and reports required by this publication are addressed in the Records Retention Schedule-Army (RRS–A). Detailed information for all related record numbers, forms, and reports are located in the Army Records Information Management System (ARIMS)/RRS–A at https://www.arims.army.mil. If any record numbers, forms, and reports are not current, addressed, and/or published correctly in ARIMS/RRS–A, see DA Pam 25–403 for guidance.

1–6. Scope, prohibitions, and enforcement provisions

a. This regulation does not pertain to the following statutory and regulatory authorities: gifts to certain individual Army personnel pursuant to 10 USC 2601a and reimbursement for certain kinds of travel and travel-related expenses pursuant to 31 USC 1353.

b. To the extent that any other AR pertaining to gifts to benefit a particular DA organization provides contrary or otherwise conflicting guidance, AR 1–100 takes precedence.

c. Except as authorized in table 1–1 and listed below, DA personnel are prohibited from soliciting, fundraising for, or otherwise requesting or encouraging the offer of a gift. The Superintendent, U.S. Military Academy and personnel falling within the Superintendent's further delegation authority in table 1–1, are permitted to inform with a covered foundation within the meaning of 10 USC 2246 on the timing, type, and value of gifts to be proffered by the foundation to the Academy. Such communication enables the covered foundation to properly steward funds held for the benefit of the Academy, and does not constitute solicitation, requesting, or encouraging the offer of a gift.

d. Failure to comply with the mandatory requirements identified in paragraphs 3–11 through 3–15 may constitute an offense under Article 92, Uniform Code of Military Justice for military members and result in disciplinary action or other adverse action under civilian personnel regulations for DA Civilians. Commanders will take appropriate administrative or disciplinary action against violators.

Chapter 2
Gift Offer Review, Acceptance, Declination, and Reporting

2–1. Gift offer review

a. A gift offer must be in writing, specify the conditions on the use of the gift if any, and contain enough details to demonstrate present intent, authority, and ability to give the gift to the Army. Other supporting documents may be required to clarify donor intent and Army responsibilities concerning the transfer, conveyance, use, and disposal of the proffered gift.

b. Officials receiving a gift, in coordination with the AGPC and servicing legal offices, must analyze the type of gift and donor to determine the associated statutory authority to guide the subsequent actions.

c. Proffers valued at or above $25,000 must include a list of all donors (for example, individuals or companies contributing to the gift).

d. Gift proffers may not be split to retain the value of the gift at a certain level of acceptance authority. If a donor indicates future proffers of the same gift, whether it be in-kind or money, the forthcoming gift should be processed based on the total amount being proffered from that donor.

e. Officials receiving a gift offer must inform the prospective donor that the Army cannot assume responsibility for any expenses incurred before the offered gift is accepted, even if the Army has temporary custody of the offered gift.

f. The Army will not assume custody of any gift before it has been accepted.

(1) In circumstances that may require an exception to this policy rule, a request will be staffed through command channels to the AGPC for the AASA's decision.

(2) Army libraries and Army museums may temporarily take custody of library materials and artifacts offered as gifts for evaluation and for determining whether to accept them as part of the library's collection per AR 370–2. The library will return items not accepted to the donor if feasible or dispose of the items in accordance with AR 735–17. Library materials or museum donations accepted for the collection will be processed as gifts and reported on the quarterly report to the AGPC.

g. The organization or entity to benefit from a gift will consult with their assigned ethics counselor to obtain a written legal review for any testamentary gift, regardless of value or any gift proffer valued at more than $250. The ethics counselor will at minimum consider the following when preparing a written legal review of a gift proffer:

(1) Whether statutory authority exists to accept the type of gift proffered by the type of donor.

(2) Whether acceptance of the gift is prohibited because—

(a) Use of the gift would result in the violation of any prohibition or limitation otherwise applicable to such program, project, or activity.

(b) The conditions attached to the gift are inconsistent with applicable law or regulations.

(c) Use of the gift would reflect unfavorably on the ability of DA or any of its personnel to carry out any responsibility or duty in a fair and objective manner.

(d) Use of the gift would compromise the integrity or appearance of integrity of any DA program, or any individual involved in such a program.

(e) The gift was offered pursuant to an improper solicitation or request by Army personnel.

(f) Acceptance of the gift is not in the Army's best interests.

(3) In addition, gifts valued at $10,000 or more will address the following matters where applicable—

(a) When the donor is a prohibited source, whether the donor is involved in any claims, procurement actions, litigation, or other matters involving the Army should be considered before acceptance.

(b) When the gift is for the benefit of certain Army personnel pursuant to 10 USC 2601(b), whether acceptance of the gift is prohibited because it is offered in a manner that specifically discriminates among Army personnel merely because of type of official responsibility or favoring those of higher rank or rate of pay or the donor has interests that may be affected substantially by the performance or nonperformance of the recipient's official duties.

2–2. Nature of the donor

a. Donors doing business or seeking to do business with DA, such as defense contractors, are prohibited sources. When the donor is a prohibited source, the legal review will advise the gift acceptance authority that sensitivity and scrutiny are required and address whether accepting a contribution from the prohibited source would violate any prohibition or reflect unfavorably on the Army (para 2–1*g*).

b. Acceptance authorities can accept gifts from prohibited sources only under specific conditions, including if acceptance will not cause embarrassment to DA or give the appearance of donor influence over official DA decisions or actions.

c. Gifts offered by prohibited sources with a value of $10,000 or more require additional scrutiny under legal review (see para 2–1*g*(3)).

d. Acceptance authorities may not accept gifts offered indirectly through an intermediary if they could not accept such a gift if offered directly from the source.

2–3. Acknowledgment of future gifts

While acceptance authorities may acknowledge an offer of a future gift, donors must be advised that the acceptance authority will not accept a proffered gift if the donor does not have the current financial means to execute the proffer, or the current authority to transfer ownership of the gift to the Army. For example, the Army will not accept a gift to build or renovate a facility unless the donor can demonstrate they have the financial capability to complete the project. Gifts of personal or real property will not be accepted if the donor does not already have the legal authority to transfer the title or ownership of the property to the Army.

2–4. Advertising and publicity

a. Restrictions regarding advertising or publicity may not be placed on the donor by the accepting organization. However, accepting organizations should ensure that any advertising or publicity do not imply endorsement of the product by the Army, any Soldier, or any DA Civilian employee.

(1) The donor may mark the gift indicating that it was donated by a particular person, group, or organization. However, the marking must be in good taste and cannot be worded so that it implies endorsement of the product by the Army or its military or civilian personnel.

(2) Acceptance of such a gift will not be construed as advertising or publicity by the Army.

b. The receiving Army official will acknowledge receipt of such gifts in a letter to the donor on behalf of the individuals in the receiving command. However, the receiving official should not publicly acknowledge receipt of the gift unless the AASA, in consultation with legal, authorizes it.

c. The accepting official will not initiate publicity for the donor.

d. The donor may not receive special concessions or privileges.

2–5. Fundraising and official endorsements

a. Army employees will not use their titles, offices, or positions to officially endorse or appear to endorse membership drives or fundraising for any non-Federal entity or its activities except as permitted by DoD 5500.07. See AR 1–10 for additional details regarding policy on fundraising within the DA.

b. Non-Federal entities are not entitled to, and will not receive, Army endorsement by virtue of their contributions to the military community or installation, their promotion or support of Army goals and objectives, or for any other reason, in accordance with AR 210–22. Identification of the donor of an artifact to the Army for the benefit of an Army museum or program does not amount to endorsement for the purpose of this regulation. Such recognition would be consistent with general museum practice and would significantly enhance donor relations and must take a discrete form, typically as a line in the exhibit text accompanying the artifact.

c. A legal review will be obtained before releasing to a non-Federal entity any written communication that could possibly be used to support fundraising efforts for gifts or to promote membership drives.

d. Army academic institutions will codify in their charters and memoranda of agreements with their foundations and other non-Federal entities that photos of or correspondence from DoD Servicemembers and civilian employees may not be used to support fundraising or imply endorsement of the non-Federal entity or its programs or fundraising efforts.

2–6. Circumstances to decline acceptance

a. Only the gift acceptance authority may decline a gift. The gift acceptance authority will acknowledge the offer and inform the donor in writing that the Army declines to accept the gift.

b. The gift acceptance authority will only accept a gift when it is in the Army's best interests to do so.

c. Acceptance is not in the Army's best interests when one or more of the following circumstances exist:

(1) The gift or a condition attached to the gift is inconsistent with applicable laws or regulations.

(2) Use of the gift would reflect unfavorably on the ability of the Army or its personnel to carry out any responsibility or duty in a fair and objective manner.

(3) Use of the gift would compromise the integrity, or appearance of integrity, of Army programs or any individual involved in Army programs.

(4) Acceptance of the gift creates—

(a) The appearance or expectation of favorable consideration as a result of the gift.

(b) The appearance of an improper endorsement of the donor and its events, products, services, or enterprises.

(c) A serious question of impropriety in light of the donor's present or prospective business relationships with DoD.

(5) The expenditure or use of funds required to accept the gift exceeds the amount Congress appropriated.

(6) The gift requires substantial expenditures or administrative efforts and maintenance that are disproportionate to any benefit.

d. The gift acceptance authority will not accept any gift bearing a name that refers to, or bearing a name that includes a term referring to—

(1) The Confederate States of America (commonly referred to as the "Confederacy").

(2) Any person who served voluntarily with or held leadership within the Confederate States of America.

(3) A Confederate battlefield victory.

e. Paragraphs 2–6*d* and 2–6*f* do not apply to Army museums, to Army Museum programs, or to the Army Artifact Collection.

f. The gift acceptance authority will not accept any gift from an organization that honors or commemorates—

(1) The Confederacy.

(2) Any person who served voluntarily with or held leadership within the Confederacy.

(3) A Confederate battlefield victory.

2–7. Gift acceptance

a. Minimum requirements for all gifts to be staffed for acceptance include the below (see chap 3 for additional considerations or requirements in accordance with type of gift):

(1) Forward gift offers, through command channels, to the SECARMY or an official with delegated gift acceptance authority (see table 1–1) including the following information in the transmittal memorandum—

(a) The item's characteristics (as applicable quantity, condition, material, and estimated size and weight).

(b) The donor's written conditions and limitations on use of the gift.

(c) The item's present use, location, and availability.

(d) The estimated value of the item, including the valuation method used.

(e) Any expenses associated with accepting and using the item (such as maintenance).

(f) The recommendation of any functional office that may be affected by the acceptance of an offer (such as public works, engineering, or contracting).

(g) The donor's present or prospective business relationships with DA.

(h) A summary of the significance to the Army of accepting the gift.

(i) Details associated with any services that are ancillary or otherwise incidental to a gift.

(2) Obtain and include a written legal review in accordance with paragraph 2–1*g*.

(3) Address gift offers requiring the SECARMY's action to the AGPC.

b. Gift acceptance will be recorded in writing, annotating acceptance on behalf of the Army, signed by the appropriate gift acceptance authority (see table 1–1), and contain supplemental instructions to inform the donor where to deliver or send the gift.

c. Additional supplemental instruction may be required to direct the benefiting organization to account for gifts of tangible personal or real property in the applicable property accountability management system.

2–8. Conveyance or transfer of a gift

a. Upon acceptance, the SECARMY or gift acceptance authority may pay all, some, or none of the necessary expenses in connection with the conveyance or transfer of a gift. For utility infrastructure gifts from privatized housing partners, a clear cost sharing agreement must be established before acceptance,

detailing which party is responsible for any necessary upgrades, modifications, or ongoing maintenance. This agreement must be documented and reviewed annually by the command.

b. If the receiving official recommends the Army pay expenses in connection with a gift, the gift action will detail the expenses.

c. Gifts should not be accepted if acceptance results in substantial expenditures, or administrative efforts and maintenance are disproportionate to any benefit. Funds for paying expenses are the responsibility of the activity heads or commanders whose appropriations are properly chargeable with such costs.

d. If a donor requires the Army to pay transportation expenses as a condition of the gift, the command, organization, or activity that will benefit from the gift must arrange transportation and include the details in the gift action.

e. If an offer submitted for the SECARMY's acceptance recommends acceptance of conveyance or transportation costs but does not demonstrate a plan has been made for action upon acceptance, the offer will be returned to the originating office for further coordination.

2–9. Transfer of title

a. The title to, or ownership of, a gift of tangible or intangible personal property transfers to the United States when a person authorized to do so accepts the gift offer.

b. The title to real property transfers to the United States when the Corps of Engineers accepts the deed on behalf of the Army.

c. Upon acceptance of a gift of land, the real estate division in the appropriate U.S. Army Corps of Engineers District will sign the deed and assume title to the property.

2–10. Reporting and records

a. Gift acceptance authorities or their field gift program managers will report accepted gifts to the AGPC at the end of each quarter of a fiscal year (FY), no later than the required submission date. The AGPC will provide the due date and reporting format.

b. Gift acceptance authorities or their field gift program managers will maintain and properly mark the official record of every gift accepted, declined, or sold under their acceptance authority in accordance with DoD 7000.14–R and AR 25–400–2.

(1) The organization receiving a gift, when other than the acceptance authority, will obtain and retain documentation and information regarding the gift, including the date nonmonetary gifts were transferred to the property records and the unique identifier or data element, if applicable.

(2) All records for monetary and nonmonetary gifts, including supporting documentation, will be permanently retained for audit purposes in accordance with DoD 7000.14–R.

2–11. Accountability and sale of gifts

a. Accountability of gifts will be continuous from the time of acceptance until the ultimate consumption or disposal of the property.

b. Gift acceptance authorities will maintain accountability of real property in accordance with AR 405–45 and AR 405–90 and of tangible personal property in accordance with AR 735–5, AR 710–4, and AR 735–17.

c. Gift acceptance authorities or their field gift program managers will designate a resource manager to manage applicable limits, or subaccounts, in the Army Gift Fund and Defense Cooperation Account.

d. Proceeds from the sale of any gift of real or personal property will be deposited via mail or electronic funds transfer in the appropriate limit, or subaccount, of the Army Gift Fund (for gifts accepted pursuant to 10 USC 2601(a) and 10 USC 2601(b)) or the Defense Cooperation Account (for gifts accepted pursuant to 10 USC 2608).

e. Proceeds from the sale of any gift of real or personal property will be reported in the quarterly report to the AGPC and DFAS.

Chapter 3
Types of Gifts

3–1. Unconditional monetary gifts
In accordance with 31 USC 3302(b), the Army cannot accept unconditional monetary gifts, and these gifts will be considered miscellaneous receipts and forwarded to the U.S. Treasury. Monetary donations left on headstones, monuments, or other places of interest within an Army National Military Cemetery will be considered a gift to benefit the cemetery accepted in accordance with paragraph 2–7. A gift is considered "conditional" if the donor specifies the Army organization to which the gift is given, and/or the purpose for which the gift should be used.

3–2. Offers of money or personal property
For acceptance of offers of money or personal property (see para 2–7).

3–3. Offers of real property
For acceptance of real property, in addition to the information required in paragraph 2–7, include—

a. A legal description of any land to be accepted.

b. The geographic location of the real property (including its relation to existing Army facilities).

c. Initial costs, if any, and anticipated recurring costs, such as operation and maintenance expenses, to the Army upon acceptance of the gift.

d. The best use of the real property.

e. The current use of the real property, if applicable.

f. The proposed Army possession date.

g. Available utility services.

h. The effect of acceptance on the civilian economy, including the community, other agencies, and individuals, if applicable.

i. Documentation of approval by a memorial board, when applicable.

3–4. Offers of services
a. Gifts of services will be closely examined to determine if the circumstances permit acceptance and in general will follow paragraph 2–7 while considering the following:

(1) In accordance with 10 USC 2601(a), services that are ancillary or incidental to a gift, as well as services offered by a certain category of donors to benefit an Army Museum program (see para 3–4*b*), may be accepted.

(2) Services for certain Army personnel may be accepted in accordance with 10 USC 2601(b). An offer of gifted services to benefit military and civilian personnel who incur a wound, injury, or illness while in the line of duty, and for the benefit of the dependents and survivors of such Army personnel, will be processed for acceptance in accordance with the requirements set out in paragraph 2–7.

(3) Services from a foreign government or international organization for defense programs should be forwarded through the SECARMY to the Under Secretary of Defense (Comptroller) for acceptance pursuant to 10 USC 2608.

b. An offer of gifted services to benefit an Army museum program can only be offered by a nonprofit entity established for the purpose of supporting an Army museum program. Employees or personnel of a nonprofit entity who provide a gift of services to benefit an Army Museum program are not considered employees of the United States. Such gifts will be processed for acceptance in accordance with the requirements in paragraphs 2–7 and 3–8.

3–5. Offers to contribute to defense programs
a. In addition to the information required in paragraph 2–7, acceptance must include the following:

(1) A description of the gift.

(2) The estimated value of the gift, including the valuation method used.

(3) The name and address of the donor.

(4) A list of restrictions, conditions, or other information the donor requests.

(5) The date the donor acquired the property.

(6) The expected useful life of the donation.

(7) A statement explaining the benefits of accepting the donation, including why acceptance is preferred to obtaining the item or service through existing supply channels.

(8) A unique identifier or data element used to track the same or similar items shipped from different sources.

(9) The appropriation that benefits from the contribution. Identify the appropriation that normally provides this asset.

b. Additional supporting documents or information, if required.

c. A written legal review in accordance with paragraph 2–1.

3–6. Copyrighted or patented gifts

a. Copyrighted or patented gifts are treated in the same way as a gift of an item not so protected and in general will follow paragraph 2–7 while considering the following.

b. If a copyrighted or patented gift might be used for governmental purposes (within the scope of the copyright or patent), the Army can accept the gift only if the donor grants the Army a royalty-free license, to the extent necessary under the copyright or patent, or gratuitously assigns the copyright or patent to the United States.

3–7. Gifts of construction

a. Gifts of construction, including utility infrastructure provided by privatized housing partners, in general will follow paragraph 3–3, whether money or real property. These gifts may require additional staffing and notification before construction can be executed. In accordance with DoDI 7700.18, gifts over $750,000 require Congressional notification prior to right-of-entry for construction.

b. For real property involving construction on Army land or modification, alteration, or addition to Army structures resulting in additions to the Army real property inventory, the plans must be approved by the Army installation facilities engineer and sent to the regional engineer, or functional oversight equivalent, for review and recommendation from the Installation Management Command or landholding command. The regional engineer will include the complete details of the project, including the cost of construction and location site and the requesting command must provide the associated forms—

(1) DD Form 1391 (FY Military Construction Project Data).

(2) Approved Site Plan.

(3) Project Certification.

(4) Project Narrative.

(5) Environmental Documentation.

(6) 35% Design Plan.

c. Gift acceptance authorities will forward offers for gifts of construction above their acceptance authority to the AGPC for review and processing.

d. Upon acceptance of a gift of construction, the gift acceptance authority will authorize a right-of-entry for construction. However, contractors must comply with local policies and regulations to gain right-of-entry to the military installation.

3–8. Gifts to benefit museums and museum programs

a. Certain gifts of personal property to benefit museums qualify as artifacts, which are accessioned into the Army's historical collection, will be processed for acceptance in accordance with AR 870–20.

b. All other gifts (personal or real property, money, or services) to support a museum program will be processed in accordance with paragraphs 2–7 or 3–4 and forwarded to the Executive Director, U.S. Army Center of Military History as part of staffing process for acceptance or endorsement.

c. Gifts to support a museum program that require the AASA's acceptance, do not require staffing through the U.S. Army Transformation and Training Command.

3–9. Testamentary gifts

a. A testamentary gift may be offered by an executor, executrix, personal representative, trustee, or other person who has a legal right to represent an estate or trust. Process testamentary gifts in accordance with paragraph 2–7.

b. The legal representative must submit a certified copy of the will or trust and the original court appointment or other documentation demonstrating authority to make the offer.

c. A testamentary gift of real or personal property may not be accepted if a condition of the gift is that the Army sell the property or use it for a particular individual.

d. All testamentary gifts require a written legal review, regardless of monetary value (see para 2–1).

e. In the event a testamentary gift is unconditional, or the conditions of the gift may not be fulfilled, the gift acceptance authority will inform the legal representative of the estate or trust that the Army may not accept the testamentary gift absent court-ordered modification to the terms of the will or trust.

f. Requests for U.S. Department of Justice representation in litigation involving Army interests will be processed in accordance with AR 27–40.

3–10. Federal income, estate, and gift taxes

a. For the purposes of Federal income, estate, and gift taxes, gifts accepted under 10 USC 2601(a) and 10 USC 2601(b) are considered gifts or bequests to the United States (see para 2–7 for processing).

b. While written notification of acceptance of a gift constitutes the Army's acceptance and receipt, the Army will not render any opinion of value for a specific gift a donor has offered.

c. The Army does not backdate or accept an offer on the condition that the offer is backdated for tax purposes. When asked, commands and activities must advise donors that it is their responsibility to consult a private tax expert for specific advice concerning the tax implications of gift giving.

3–11. Foreign government and limited gift acceptance authority

a. Foreign government means any unit of foreign governmental authority, including any foreign national, state, local, and municipal government or any international or multinational organization whose membership is composed of any unit of foreign government; or any agent or representative of any such unit or such organization, while acting as such.

b. 5 USC 7342 permits Army personnel to accept gifts of minimal value, tendered, and received as a mark of courtesy from a foreign government. Process in accordance with paragraph 2–7.

c. 5 USC 7342 does not permit the Army to accept foreign gifts presented to units or groups. However, foreign gifts presented to units may be accepted pursuant to 10 USC 2601. Process in accordance with paragraph 2–7.

d. Foreign decorations and awards may only be accepted pursuant to guidance in AR 600–8–22.

3–12. Foreign gifts of minimal value

a. Every 3 years, in consultation with the DoS, GSA adjusts the minimal value amount to capture changes in the Consumer Price Index. To find the current minimal value, go to Code of Federal Regulation (41 CFR 102–40) or contact the AGPC at usarmy.pentagon.hqda-oaa.mbx.army-gift-program@army.mil.

b. Employees must notify their organization upon receipt of a gift from a foreign official to determine the value of the gift and its acceptability.

c. Employees may accept and retain gifts of minimal value received as souvenirs or marks of courtesy.

d. If the same source gives multiple gifts at the same presentation, aggregate the values to determine if the gifts are above or below the minimal value GSA defined. Do not aggregate the value of gifts from the same source at different presentations (even if on the same day) or different sources at the same presentation.

e. The recipient and the recipient's organization must use an approved valuation method (acceptable methods to determine the U.S. retail value of the gift are listed below) to determine the value of the gift and must maintain a record of the details surrounding the presentation of the gift.

(1) The price of the same or similar item offered for sale in a legitimate U.S. retail market.

(2) The manufacturer's retail price.

(3) The price of the same or similar item offered for sale in a U.S. military exchange.

(4) The price of the same or similar item offered for sale in a U.S. mail order catalog.

(5) A similarly reliable method for determining fair market value.

f. If doubt exists about the actual U.S. retail value and the recipient cannot determine a value using the options in paragraph 3–12*e*, their organization may pay for an appraisal to determine the value. However, prior to getting an appraisal, the recipient should consult with the servicing legal office about the need to obtain an appraisal.

g. The recipient may dispose of any item equal to or less than the minimal value either at the recipient's discretion or through the organization's appropriate property accountability official in accordance with AR 735–5 and AR 710–4.

3–13. Foreign gifts of more than minimal value

a. If possible, when a gift of more than minimal value is offered, the recipient should politely and respectfully decline the offer unless—

(1) The refusal would offend or embarrass the donor or could adversely affect U.S. foreign relations.

(2) The gift is an educational scholarship, medical treatment, or travel. The recipient may accept travel or expenses for travel, including transportation, food, and lodging, only if that travel—

(a) Occurs entirely outside the United States, except if travel across the continental United States is the shortest, least costly, or sole route available to the destination.

(b) Is in the best interests of the Army and the U.S. Government.

(c) Is approved in advance by the appropriate travel approving authority.

(d) Does not fall within the category of travel expense governed by 31 USC 1353.

b. Gifts of more than minimal value are the property of the U.S. Government and must be reported to the AGPC (usarmy.pentagon.hqda-oaa.mbx.army-gift-program@army.mil) for a decision on disposition within 60 days of receipt of the gift.

c. A signed memorandum on official DA letterhead must be submitted providing the following details:

(1) *Identity of the recipient.* Full name, rank, and position title. If the recipient is a dependent, include the sponsor's full name, rank, and position title.

(2) *Description of the item.* A fully detailed description of the gift, including the title if a decoration, if applicable. Identify each gift as a separate line item. Report multiple gifts that make up a set as one item.

(3) *Identity of the foreign government.* Foreign government name includes the full name, rank, title, and position of the individual who presented the gift.

(4) *Circumstances justifying acceptance.* Describe the circumstances surrounding the presentation of the gift and why the gift was accepted.

(5) *Date of acceptance.* Full date (day, month, year) the gift was accepted.

(6) *Appraised value.* Identify the estimated (or appraised) value of the gift in U.S. dollars, including the cost of the appraisal. The recipient's organization must obtain a commercial appraisal before the gift is offered for sale to the employee. (See para 3–12*e* for appraisal requirements.)

(7) *Current location of the item.* Complete address of the current location of the gift.

(8) *Recipient's organization point of contact.* Full name, address, and email of the accountable official.

(9) *Disposition request.* Indicate whether the recipient wants to buy the gift, turn it in to GSA, or request that it be placed on official display or used for official purposes.

(10) *Presidential administration.* List the Presidential administration in office when the gift was given.

3–14. Foreign gift disposition and retention procedures

a. Gifts equal to or less than minimal value may be retained by the recipient or turned in as excess property through the recipient's property accountability office in accordance with AR 735–5 and AR 710–4.

b. All requests to retain and display, for official use, a gift of more than minimal value must be submitted to the AGPC for action.

(1) Requests must be a memorandum on DA letterhead signed by the recipient and provide the information outlined in paragraph 3–13*c* and include a detailed description of how and where the gift will be displayed.

(2) Approval to display an item above minimal value will—

(a) Be approved by GSA and forwarded to the recipient and the AGPC.

(b) State the gift may not be used for the benefit or personal use of any individual employee, but that all employees are provided the opportunity to receive direct benefit (for example, on display in a headquarters office).

(c) Require that within 30 calendar days after the departure of the recipient or termination of, the recipient's organization must forward the gift to the AGPC for turn in to GSA.

(d) State that the recipient organization's property accountability official is responsible for caring for, handling, and securing the item in accordance with AR 735–5 and AR 710–4.

c. All requests to purchase a gift of more than minimal value, using the recipient's personal funds, must be submitted to the AGPC to obtain GSA approval.

(1) The request must be signed by the recipient on official letterhead, provide the information outlined in paragraph 3–13*c* and include a commercial appraisal. The recipient may obtain the commercial appraisal and commercial appraisals must be on the appraiser's official company letterhead, prepared in the United States, dated, and expressed in U.S. dollars.

(2) The AGPC will submit the memorandum and appraisal to the GSA Foreign Gifts Program Coordinator for approval and guidance. After GSA provides the guidance and approves the request, the AGPC will coordinate with the recipient's point of contact.

(3) The gift will remain in the physical custody and be the responsibility of the recipient's property accountability official until GSA acts on the recipient's request. If GSA declines the request, the recipient's property accountability official will follow the turn in procedures (see para 3–14*d*).

d. All requests to turn in a gift of more than minimal value must be submitted to the AGPC for coordination with GSA.

(1) The request must be signed by the recipient on official letterhead and provide the information outlined in paragraph 3–13*c*.

(2) The recipient's property accountability official is responsible for physical custody of the gift until they coordinate and deliver it to the AGPC. Upon transfer, the AGPC assumes responsibility for the physical custody of the gift while coordinating the turn in with the GSA, Foreign Gifts Program Coordinator.

3–15. Firearms

a. Firearms of minimal value must be reported and processed in accordance with paragraph 3–12. To retain a firearm of minimal value, the recipient must obtain a legal review to ensure compliance with all Federal, State, and local laws and regulations regarding the registration, transportation, and possession of a firearm.

b. Firearms of more than minimal value must be—

(1) Reported to the AGPC as specified in paragraphs 3–13*b* and 3–13*c*.

(2) Stored in the unit arms room or other location authorized by the senior commander (or equivalent) until GSA decides on the appropriate disposition of these items according to procedures established under 40 USC 121(c)(2), 41 CFR 102–40, and 41 CFR 102–42.

c. A weapon that has been rendered permanently inoperable is not considered to be a firearm.

Appendix A

References

Section I

Required Publications

Unless otherwise stated, Department of the Army publications are available on the Army Publishing Directorate website at https://armypubs.army.mil/. DoD issuances are available on the Washington Headquarters Services website at https://www.esd.whs.mil/. USCs are available at https://uscode.house.gov/.

AR 1–10
Fundraising within the Department of the Army (Cited in para 2–5*a.)*

AR 25–400–2
Army Records Management Program (Cited in para 2–10*b.)*

AR 27–40
Litigation (Cited in para 3–9*f.)*

AR 210–22
Support for Non-Federal Entities Authorized to Operate on Department of the Army Installations (Cited in para 2–5*b.)*

AR 370–2
The Army Library Program (Cited in para 2–1*f*(2).)

AR 405–45
Real Property Inventory Management (Cited in para 2–11*b.)*

AR 600–8–22
Military Awards (Cited in para 3–11*d.)*

AR 710–4
Property Accountability (Cited in para 2–11*b.)*

AR 735–5
Relief of Responsibility and Accountability (Cited in para 2–11*b.)*

AR 735–17
Accounting for Library Materials (Cited in para 2–1*f*(2).)

AR 870–20
Army Museum Enterprise and Army Artifact Collection (Cited in para 3–8*a.)*

DoD 5500.07
Joint Ethics Regulation (JER) (Cited in title page.) (Available at https://dodsoco.ogc.osd.mil/.)

DoD 7000.14–R
Department of Defense Financial Management Policy (Cited in para 1–4*a*(2).) (Available at https://comptroller.defense.gov/fmr/.)

DoDI 1005.13
Gifts, Decorations, and Employment from Foreign Governments (Cited in para 1–4*b*(2)(*d*).) (Available at https://www.esd.whs.mil/dd/.)

DoDI 7700.18
Commissary Surcharge, Nonappropriated Fund (NAF), and Privately Financed Construction Reporting Procedures (Cited in para 3–7*a.*) (Available at https://www.esd.whs.mil/dd/.)

PL 107–107, Section 2866(d)
Development of United States Army Heritage and Education Center at Carlisle Barracks, Pennsylvania (Cited in title page.) (Available at https://www.govinfo.gov/.)

5 CFR 2635
Standards of ethical conduct for employees of The Executive Branch (Cited in title page.) (Available at https://www.ecfr.gov/.)

5 USC
Government organization and employees (Cited in title page.)

5 USC 1501
Definitions (Cited in para 1–4*d*(5).)

5 USC 7342
Receipt and disposition of foreign gifts and decorations (Cited in para 1–4*b*(2)(*d*).)

10 USC 974
Military musical units and musicians: performance policies; restriction on performance in competition with local civilian musicians (Cited in title page.)

10 USC 2246
Authorization of certain support for military service academy foundations (Cited in para 1–6*c*.)

10 USC 2493
Fisher Houses: administration as nonappropriated fund instrumentality (Cited in title page.)

10 USC 2601
General gift funds (Cited in title page.)

10 USC 2608
Acceptance of contributions for defense programs, projects, and activities; Defense Cooperation Account (Cited in title page.)

10 USC 7456
Use of certain gifts (Cited in title page.)

10 USC 7772
Heritage Center for the National Museum of the United States Army: development and operation (Cited in title page.)

Section II

Prescribed Forms

This section contains no entries.

Appendix B

Internal Control Evaluation

B–1. Function
The function covered by this evaluation is the administration of the Army Gift Program, including review and reporting requirements.

B–2. Purpose
The purpose of this evaluation is to assist delegated gift acceptance authorities in evaluating the key internal controls listed. It is intended as a guide and does not cover all controls.

B–3. Instructions
Answers must be based on the actual testing of key internal controls by utilizing one of four test methods which are Inquiry, Observations, Examination, or Re-performance. Inquiry regarding a control's effectiveness does not, by itself, provide sufficient evidence of whether a control is operating effectively and generally is corroborated through other types of control tests (observation or inspection). Answers that indicate deficiencies must be explained and corrective action identified in supporting documentation. These internal controls must be evaluated at least once every 5 years. Certification that the evaluation has been conducted must be accomplished on a DA Form 11–2 (Internal Control Evaluation Certification).

B–4. Key control questions
a. Army Gift Program Coordinator evaluation.

(1) Was a legal review completed?

(2) Did the proper level acceptance authority accept or decline the gift?

(3) Did delegated gift acceptance authorities submit timely reports of all gifts and donations accepted under 10 USC 2601(a) and (b)?

(4) Did the AGPC submit timely reports to DFAS?

b. Army command evaluation.

(1) Has the gift acceptance authority established a field gift program office? Has a designated field gift program manager been appointed and receive training from the APGC?

(2) Is a command, organization, or activity policy established to ensure all gift requests are reviewed thoroughly for compliance with this regulation and other applicable regulations and policies?

(3) For any gift accepted or declined over $50, was a legal review completed?

(4) Did the proper level acceptance authority accept or decline the gift?

(5) Did delegated gift acceptance authorities submit timely reports of all gifts and donations accepted under 10 USC 2601(a) and (b) to the APGC?

B–5. Supersession
This evaluation replaces the evaluation previously published in AR 1–100, dated 12 May 2023.

B–6. Comments
Help to make this a better tool for evaluating internal controls. Submit comments to the Administrative Assistant to the Secretary of the Army at usarmy.pentagon.hqda-oaa.mbx.army-gift-program@army.mil.

Glossary of Terms

Army academic institution
Federally chartered academic/military educational institution (for example, United States Military Academy, United States Army War College, and United States Army Command and General Staff College).

Bequest
A gift in a will of tangible and/or intangible personal property.

Conveyance
The transfer of the title to land by one or more persons to another or others. The instrument that conveys the property is also called a conveyance.

Decoration (as it relates to 5 USC 7342)
An order, device, medal, badge, insignia, emblem, or award offered by or received from a foreign government.

Dependent
See DoD 7000.14–R.

Devise
A gift in a will of real property.

Donation
Includes “gifts” and refers to something of value received from a non-Federal source without consideration or exchange of value.

Ethics counselor
As set forth in DoD 5500.07.

Firearms
As set forth in 41 CFR 101–42.

Foreign government
Any unit of foreign government, including any national, State, local, and municipal government and their foreign equivalents; any international or multinational organization whose membership is composed of any unit of a foreign government; and any agent or representative of any such foreign government unit or organization while acting as such. Native American tribes are not foreign governments for purposes of the Foreign Gifts and Decorations Act.

Gift
A contribution, donation, devise, or bequest of real or tangible or intangible personal property.

Gift acceptance authority
The DA official who, either through authorization or delegation authority from the SECARMY, may accept gifts satisfying the acceptance criteria in this regulation.

Gift to the Army
A gift, devise, or bequest of real property, personal property, money, or services made on the condition that the gift, devise, or bequest be used for the benefit of, or in connection with, the establishment, operation, or maintenance of a school, hospital, library, museum, cemetery, or other institution or organization under the SECARMY’s jurisdiction, and that is acceptable under the applicable statute in accordance with Federal, DoD, and Army regulations and policies.

Intangible personal property
Cash, checks, or other forms of negotiable instruments.

International organization
Organizations that are established for a particular purpose defining the mandate of the organization and investing in it a legality that is agreed to by the participating countries.

Minimal value
A retail value, as defined by GSA, in the United States at the time of acceptance of a gift. GSA will adjust the definition of minimal value in regulations prescribed by the Administrator of General Services every 3

years, in consultation with the Secretary of State, to capture changes in the Consumer Price Index for the immediately preceding 3-year period.

Non–Federal entity
Generally, a self-sustaining, non-Federal person or organization, established, operated, and controlled by individuals acting outside the scope of any official capacity as officers, employees, or agents of the Federal Government. A non-Federal entity may operate on DoD installations if approved by the senior commander or higher authority under applicable regulations.

Personal property
A tangible item that is not real property, including artwork; furniture; equipment; office machines; vehicles; materials; supplies; and intangible items of money, stocks, and bonds.

Prohibited source
Any person (or an organization made up of such persons) who is seeking official action by, is doing business or seeking to do business with, or is regulated by the employee's agency; or has interests that may be substantially affected by performance or nonperformance of the employee's official duties.

Real property
Real property includes lands and interests therein, leaseholds, standing timber, buildings, improvements, and appurtenances thereto owned by the United States under the control of DA. It also includes piers, docks, warehouses, rights-of-way, and easements, whether temporary or permanent, and improvements permanently attached to and ordinarily considered real estate. It does not include machinery, equipment, or tools that have not been affixed to or were severed or removed from any such lands or buildings or may be so severed or removed without destroying the usefulness of the structures.

Services
Include activities that benefit an Army museum program; the morale, welfare, or recreation of members of the Armed Forces and their dependents; or are related or incidental to the conveyance of a gift of real or personal property.

Testamentary gift
A gift made by a will or trust, such as a bequest (personal property) or devise (real property). Such gifts do not become effective until the death of the donor.

Unconditional gift
A gift that is offered without any indication of or direction as to which DA program or organization the gift is intended to benefit (for example, a donor’s check made out to the U.S. Army for $5,000 with the words “My donation” printed on the memo line).

Useful life of a donation
The length of time that a depreciable asset is expected to be usable.